

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

**JOINT REQUEST FOR STATUS CONFERENCE ON DISCOVERY AND THE
SCHEDULING ORDER**

Complainants Ports America Chesapeake, LLC, and Marine Terminals Corporation-East (“Complainants”) and Respondent APS East Coast, Inc. (“Respondent”) (each a “Party” and collectively the “Parties”), respectfully jointly request a status conference with the Presiding Officer at his earliest opportunity in order to discuss the status of discovery and the scheduling order.

As ordered during the Status Conference that was held on December 18, 2023, on December 27, 2023, Complainants and Respondent each filed Motions to Compel regarding certain unresolved discovery matters, and on January 3, 2024, the respective parties each filed

responses to the other's Motion to Compel. As discussed at the Status Conference, the Motions to Compel were briefed over the holidays in an effort to avoid delaying discovery in the proceeding. Due to the unresolved discovery disputes the Parties have conducted only limited discovery to date.

Under the amended scheduling order issued on December 11, 2023, briefing is currently scheduled to begin on February 19, 2024, and conclude on April 2, 2024. However, the Motions to Compel remain pending and the Parties have not developed a full and complete record, depending on the outcome of the Motions. While the Parties have used the pendency of the Motions to explore whether a negotiated resolution may be possible, clarity with respect to the current schedule would be appreciated.

Accordingly, the Parties respectfully request a status conference to discuss the pending Motions to Compel and the current schedule in this proceeding.

Dated: February 15, 2024

Respectfully Submitted,

HOLLAND & KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: February 15, 2024

/s/ Kristine O. Little
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